

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	17-07-2026 17:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	17-07-2026 17:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Labour And Employment
विभाग का नाम/Department Name	Na
संगठन का नाम/Organisation Name	Employees State Insurance Corporation (esic)
कार्यालय का नाम/Office Name	Esic Hospital Bibviewadi, Pune
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :vibhutid.ambawade@esic.gov.in Buyer Email id: rk.singh@esic.gov.in
कुल मात्रा/Total Quantity	20
वस्तु श्रेणी /Item Category	Department of Anatomy Books , Department of Physiology Books , Department of Biochemistry Books , Department of Pharmacology Books , Department of Microbiology Books , Department of Forensic Books , Department of Pathology Books , Department of Ophthalmology Books , Department of ENT Books , Department of PSM Books , Department of Medicine Books , Department of OBGY Books , Department of Surgery Books , Department of Paediatrics Books , Department of Dermatology Books , Department of Psychiatry Books , Department of Radiology Books , Department of Anaesthesia Books , Department of Ortho Books , Department of Dental Books
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Department of Anatomy Books, Department of Physiology Books, Department of Biochemistry Books, Department of Pharmacology Books, Department of Microbiology Books, Department of Forensic Books, Department of Pathology Books, Department of Ophthalmology Books, Department of Ent Books, Department of PSM Books, Department of Medicine Books, Department of Obgy Books, Department of Surgery Books, Department of Paediatrics Books, Department of Dermatology Books, Department of Psychiatry Books, Department of Radiology Books, Department of Anaesthesia Books, Department of Ortho Books, Department of Dental Books
	Searched String: Department of Anatomy Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of

बिड विवरण/Bid Details	Consumer Affairs), Books (V2), Anatomy Structure Model (V3), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3)
	Searched String: Department of Physiology Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Biochemistry Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Pharmacology Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Microbiology Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Petri plates or dishes(V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Forensic Books Digital Forensic Platform Software (V2), Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Digital Forensic Workstation, Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Pathology Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Ophthalmology Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For

बिड विवरण / Bid Details	Examinations (V3)
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Searched String: Department of Ent Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Entry and Mid Level Desktop Computer, Books (V2), Anatomy Structure Model (V3), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3)
	Searched String: Department of PSM Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3)
	Searched String: Department of Medicine Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3)
	Searched String: Department of Obgy Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3)
	Searched String: Department of Surgery Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Veterinary general surgery kit, Answer Book/Booklets For Examinations (V3)
	Searched String: Department of Paediatrics Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Urine Collection Bag - Sterile (Single Use), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Dermatology Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3)

बिड विवरण / Bid Details	Searched String: Department of Psychiatry Books
	Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Radiology Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Anaesthesia Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Answer Book/Booklets For Examinations (V3) Searched String: Department of Ortho Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Assistive Tech, Books (V2), Register (V2), Orthopedic Instruments- Self Retaining Retractors, Exercise Books Conforming to IS 5195, Examination Answer Books (V4) Conforming to IS 5195, Locking Compression Plates (V2), Answer Book/Booklets For Examinations (V3) Searched String: Department of Dental Books Mass Flowmeter for Verification of CNG Dispenser for Vehicles as per Legal Metrology Division (Department of Consumer Affairs), Books (V2), Register (V2), Endodontic Files (V2), Exercise Books Conforming to IS 5195, Dental Impression Trays - RBSK, Examination Answer Books (V4) Conforming to IS 5195, Dental Airotor Diamond Burs, Dental Mouth Mirror, Cancellous/Cortical Mix for Dental or Orthopaedic Surgeries
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	Books (V2)
बीओक्यू शीर्षक / BOQ Title	SUPPLY OF MEDICAL BOOKS
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) / Minimum Average Annual Turnover of the bidder (For 3 Years)	65 Lakh (s)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष / Years of Past Experience Required for same/similar service	3 Year (s)
टर्नओवर के लिए एमएसई को छूट प्राप्त है / MSE Relaxation for Turnover	Yes Partial Turn over value - 50 (in lakhs)

बिड विवरण/Bid Details	
टर्नओवर के लिए स्टार्टअप को छूट प्राप्त है / Startup Relaxation for Turnover	Yes Partial Turn over value - 50 (in lakhs)
विक्रेता से मांगे गए दस्तावेज़/ Document required from seller	Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC),Additional Doc 4 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/ Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	2
विगत प्रदर्शन / Past Performance	40 %
बिड से रिवर्स नीलामी सक्रिय किया/ Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/ RA Qualification Rule	H1-Highest Priced Bid Elimination
बिड का प्रकार/ Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/ Primary product category	Department of Anatomy Books
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय / Time allowed for Technical Clarifications during technical evaluation	3 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/ Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
अनुमानित बिड मूल्य / Estimated Bid Value	13192718
मूल्यांकन पद्धति/ Evaluation Method	Total value wise evaluation
वित्तीय दस्तावेज की आवश्यकता है / Financial Document Required	Yes
मध्यस्थता खंड/ Arbitration Clause	No
सुलह खंड/ Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	260000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	3

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने है। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

Medical Superintendent

Esic Hospital Bibvewadi, Pune, NA, Employees State Insurance Corporation (ESIC), Ministry of Labour and Employment

(Esi Fund Account No I)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50

सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time)
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

1. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
3. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.
4. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.
5. Preference to Make In India products (For bids < 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public

Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

6. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

7. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

8. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 40% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

9. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

एक्सेल में अपलोड किए जाने की आवश्यकता /Excel Upload Required :

PRICE BIFURCATION OF BOOKS (To be submitted with the price bid only) - [1782471036.xlsx](#)

Pre Bid Detail(s)

मूल्य भिन्नता खंड दस्तावेज़/Pre-Bid Date and Time	प्री-बिड स्थान/Pre-Bid Venue
06-07-2026 11:00:00	Dean Chamber, ESIC Hospital Bibvewadi Pune

Department Of Anatomy Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Physiology Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Biochemistry Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Pharmacology Books

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Department Of Microbiology Books

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Department Of Forensic Books

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Department Of Pathology Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Ophthalmology Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of ENT Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of PSM Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Medicine Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of OBGY Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Surgery Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Paediatrics Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Dermatology Books

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Department Of Psychiatry Books

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Department Of Radiology Books

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Anaesthesia Books

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Ortho Books

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications**Specification Document**[View File](#)**BOQ Detail Document**[View File](#)

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1	Rakesh Kumar Singh	411037,ESIC Hospital, Survey No.690 BIBVEWADI, PUNE-411 037	1	30

Department Of Dental Books

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क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

Annexure-I

Scope of Supply

ESIC Medical College & Hospital, Pune intends to procure Medical Books (Latest Editions) for academic, teaching, training, research and library requirements of various Departments of the Medical College and Hospital. The details of the Departments and the list of books proposed for procurement are provided in Annexure-II.

The successful bidder shall supply the books strictly in accordance with the spe

cifications, titles, authors, publishers and editions mentioned in Annexure-II. Whenever a newer edition of a quoted book is available at the time of supply, the latest edition shall be supplied without any additional cost to the Purchaser.

The Dean, ESIC Medical College & Hospital, Bibvewadi, Pune reserves the right to increase, decrease without assigning any reason and without any financial liability other than payment for the actual quantity supplied and accepted. Bidder has to quote hundred percent of the books mentioned in the list at annexure -II and should be able to supply minimum 90% of quoted Books from the attached list. The Medical books available in India should be supplied within 30 days and in case of books imported from foreign publisher, the supplies should be completed within 60 days from the date of purchase order. If the supplier fails to supply the Books, the security deposit may be forfeited. **Payment will only be released after supply and inspection of books as mentioned above as per prescribed time limit.**

BIDDERS'S ELIGIBILITY AND QUALIFICATION CRITERIA:

- a. The bidder should have an average annual turnover of ₹ 2.5 crores for last 3 financial year viz 2022-23, 2023-24, 2024-25 certified by Chartered Accountant. A certificate in this regard should be uploaded.
- b. The bidder should have a Valid License for sale/supply in the books and must attach proof of authorization of distributors of major publishers.
- c. The Bidders shall be registered with FPBAI/AIPB. Documentary proof of the same must be uploaded.
- d. The bidder must attach an Import/Export License.
- e. The bidder shall be a Publisher and/or Distributor having demonstrable experience in the continuous supply of Medical and/or Scientific books (published by Indian and foreign publishers) to any Government Medical College and/or Government Library in India. The bidder must satisfy either of the following conditions: The bidder shall have executed continuous supply of such books for a period of five (5) years, wherein the annual value of supplies shall not be less than Rs. 50 Lakh per annum; OR The bidder shall have executed continuous supply of such books for a period of three (3) years, wherein the annual value of supplies shall not be less than Rs. 80 Lakh per annum, supplied to any Government Medical College. The bidder shall furnish documentary evidence in support of the above experience, along with satisfactory performance certificates issued by the respective Government institutions. Documentary proof of the same and satisfactory supply certificate from Government Medical College needs to be uploaded indicating total contract value as well as value of supplied books.
- f. Bidders should not be blacklisted by any publisher, library & educational institution or organization. If it is subsequently found at any stage that the Bidders has been blacklisted as mentioned above, the order placed on such Bidders, if any, will be treated as cancelled and the EMD/Security Deposit submitted by the Bidders will be forfeited. A declaration should be uploaded to

the GeM portal on Rs. 500/- non-judicial stamps in this regard.

g. The bidder should quote 100% of the books as per the list provided and should be in a position to quote 90% of books (as per list) within the stipulated time prescribed in the bid, failing which the bidder is liable to be rejected and EMD/PBG may be forfeited. An undertaking on Rs 500 non-judicial stamp paper should be uploaded in this regard.

h. An undertaking regarding the supply of latest editions of medical books has been quoted and will be supplied, must be uploaded along with technical part of the bid.

i. Bidder must undertake to offer a minimum 10% discount as per publisher's price.

Documents: -

- i.** The Bidders should have a valid **Trade License, GST Registration Certificate (if GST is not applicable proof of the same should be attached), PAN/TAN of the firm/company** and upload scanned of self-attested copies of all pages of such certificates along with the bid, **failing which the tender is liable to be rejected.**
- ii.** Bidder must upload scanned copies of Audited Financial Statements (Profits & Loss Accounts, Balance Sheet, Income Tax Returns) for last 3 financial year viz 2022-23, 2023-24, 2024-25 in support of turnover.
- iii.** Copy of Registration/affiliation with FPBAI/AIPB.
- iv.** Bidder must upload scanned copies of authorization of distributors of at least 5 major publishers.
- v.** Bidder must upload scanned copies of Import/Export License.
- vi.** Bidder must upload scanned copies of non-blacklisting certificates on Rs. 500/- non-judicial stamp paper.
- vii.** Scanned copy of EMD of requisite value.
- viii.** Undertaking about offering minimum discount of 10%
- ix.** Undertaking of supply of latest editions of books and quote & supply of at least 90% books of the list of demand.
- x.** 5 Satisfactory supply certificates issued by different Government Medical College for supply of Medical/Scientific/Technical Books (Indian & Foreign Publishers) to any Indian Government Medical College, libraries.

All the documents must be signed, stamped, scanned, and uploaded on GeM Portal, and hard copies of the same should not be submitted except for the EMD.

Check List:-

The Bidders are requested to follow the check list at the time of submission of tender document without which the offer is Liable to be cancelled.

Check List		
1	Earnest Money deposited in the form of Demand draft only	Whether uploaded (Yes/No)
2	Valid Trade License for sale/supply of books	Whether uploaded (Yes/No)
3	Copy of PAN card enclosed	Whether uploaded (Yes/No)
4	GST Registration Certificate enclosed	Whether uploaded (Yes/No)
5	Technical Bid Form Completely filled and sealed and signed	Whether uploaded (Yes/No)
6	Price Bid Filled (for financial only)	Whether uploaded (Yes/No)
7	Tender Document signed on all pages	Whether uploaded (Yes/No)
8	Undertaking as per annexure IV on Rs 500/- Non-Judicial stamp paper	Whether uploaded (Yes/No)
9	Audited Financial statements (Balance sheet, profit & loss A/c and ITR) for the financial year 2022-2023, 2023-2024, 2024-2025	Whether uploaded (Yes/No)
11	Publisher/Bookseller/Distributor having experience for Continues supplying of Medical/Scientific Books (Indian & Foreign Publishers) to any Indian Government Medical College/libraries and same should NOT be less than 40% of estimated cost of this bid per annum for continuously for 5 years OR not less than the 70% of estimated cost per annum for continuous supply for 3 (three) years. Documentary proof of the Same	Whether uploaded (Yes/No)
12	Copy of Registration/ Affiliation No (With FPBAI/AIPB)	Whether uploaded (Yes/No)
14	Work orders and satisfactory supply Certificates issued by the Government medical college/Educational institutes/libraries along with amount.	Whether uploaded (Yes/No)
15	Certificate stating that latest/ordered editions of medical books are quoted and will be supplied	Whether uploaded (Yes/No)

Note:-

i) If a valid trade license constitutes/consists of more than one certificate/page then all the pages are to be enclosed failing which bid is liable to be cancelled.

ii) In case any license expires within the period of submission of tender, an application towards renewal of the same should be uploaded along with the last license, and attested photocopies of the same may be submitted. The renewed license is to be submitted, in case of award of the contract. All the Documents have to be signed, stamped, scanned and uploaded online. Hard copies of the Documents need not be submitted except for the Demand Draft.

GENERAL TERMS AND CONDITIONS

1. The Bidders shall give full assistance and information as may be required in connection with the contract to the Dean or any other officer nominated by him/her to inspect the premises of the Bidders at all reasonable times at his own cost and risk. Tender will be awarded **on the basis of L-1 bidder** (Annexure-II) selected online through GeM Portal. ***The Bidders shall have to fill out the details of the year, Basic (Publisher's) Rate, Discount in percentage (%) and GST (If applicable) in Rs in the online financial bid. The financial rates should not mention in technical documents; such bids shall be summarily rejected.***

2. SIGNING OF TENDER:

- A. The tender is liable to be rejected if complete information is not given therein or if the particulars and date (if any) asked for in the tender are not duly & fully filled in. Attention may be given to the dates of delivery and to the particulars referred to in the conditions of contract to comply with them.
- B. Individuals signing tender or other documents connected with the contract must specify:

- i) Whether signing as a Sole Proprietor of the firm or his Attorney?
- ii) Whether signing as a Registered Active Partner of the firm or his Attorney?

In the case of companies and firms registered under the Indian Partnership Act, the capacity in which signing e.g. Secretary, Manager, and Partner etc. or their attorney to be mentioned and copies of documents, empowering him to do so be produced, on demand.

NOTE: In case of unregistered firms, all the members or all Attorneys duly authorised by all of them or the Manager of the firm should sign the tender and subsequent documents.

3. **Estimated Bid Value: - Rs 1,31,92,718/- /- (Rs. One Crore Thirty one lakh Ninety Two Thousand Seven Hundred Eighteen only)** the amount may vary i.e. increase or decrease as per quoted discount.

4. Earnest Money: - Earnest Money Deposit (EMD):

- a. Bidders are required to submit an **Earnest Money Deposit (EMD) of ₹2,60,000 (Rupees Two Lakh Sixty Thousand Only)** along with their bid and shall be submitted in the form of **Demand Draft/Banker's Cheque/Bank**

Guarantee in favour of ESI Fund Account No.1, payable at Pune. A scanned copy of the Demand Draft shall be uploaded along with the bid documents on the GeM portal. The original Demand Draft must be sent by Speed Post/Registered Post/Courier or delivered by hand so as to reach the office of the undersigned within **seven (07) working days from the date of bid closing** at the following address:

**The Dean
ESIC Medical College & Hospital
Bibvewadi, Pune - 411037, Maharashtra**

b. The ESIC Medical College & hospital Pune, Maharashtra 411037 is not responsible for any postal delays. The bids received without EMD will not be considered and summarily rejected.

c. The Demand Draft shall be submitted in a sealed envelope super-scribed as: "**EMD for Supply of Medical Books against GeM Bid No. _____**"

d. Bids received without the prescribed EMD shall be liable to be rejected as non-responsive, except in cases where exemption is admissible under Government of India rules/orders.

e. The EMD of unsuccessful bidders during first stage i.e. technical evaluation etc. shall be returned within 30 days of declaration of result of first stage i.e. technical evaluation etc as per Rule 170 of GFR 2017 without any interest.

f. The EMD may be forfeited if the bidder:

- i. Withdraws or modifies the bid during the period of bid validity;
- ii. Fails to accept the Purchase Order/Letter of Award;
- iii. Fails to furnish the required Performance Security within the stipulated period; or
- iv. Commits any breach of tender conditions leading to cancellation of the award.
- v. The EMD of the successful bidder shall be refunded to the successful bidder on receipt of Performance Security as per Rule 171(iii) of GFR 2017 without any interest.

5. Security Deposit (Performance Security (PBG)): -

a. The successful bidder shall furnish a Performance Security equivalent to **5%** of the total contract value in the form of a Bank Guarantee, Account Payee Demand Draft issued by any nationalized bank drawn in favour of ESI Fund A/c No. 1, payable at Pune Maharashtra 411037.

b. The Performance Security shall remain valid for the entire contract period and for a further period of sixty (60) days beyond the completion of all contractual obligations, if any.

c. Failure to furnish the Performance Security within the stipulated period may result in cancellation of the award of contract and such other action as may be deemed appropriate under the provisions of GeM, GFR-2017 and the terms and conditions of the bid.

d. The Performance Security shall be liable to be forfeited, wholly or partly, in the event of breach of contract, non-performance, failure to comply with contractual obligations, or termination of the contract attributable to the supplier.

e. The Performance Security shall be released on due performance and completion of the contract in all respects, without interest after satisfactory completion of all contractual obligations and on presentation of an absolute 'No Demand Certificate' in the prescribed form and expiry of the validity period thereof as per Rule 171 of GFR, 2017 and GeM General Terms & Conditions

(latest version), as amended from time to time.

6. PRICES Schedule: -

- a. Tenderers should quote rate of discount (in percentage) offered on publishers printed rate for books in Annexure-II.
- b. Price must be clearly shown in figures and words in Indian Currency. All payment will be made in Indian Rupees only.
- c. The Rates should be quoted for single copy/unit price.
Bill in triplicate (pre-receipted) for the Medical books will be submitted by the tenderer in the name of the Dean, ESIC Medical College & Hospital, Pune, Maharashtra 411037 for payment.
- d. The bidder shall mandatorily submit the duly filled Excel sheet (attached with the bid document) containing the detailed price bifurcation indicating the cost of each **book along with the Price Bid only**. Failure to submit the duly filled price bifurcation sheet, or submission of an incomplete sheet, may lead to rejection of the bid.
- e. In case bid is transferred to RA and rate is reduced then item wise rate will be adjusted proportionally according to decreased percentage.

7. DELIVERY:-

- a. The Medical books available in India should be supplied within 30 days and in case of books imported from foreign publisher, the supplies should be completed within 60 days from the date of purchase order.
- b. Only original Books will be accepted and no duplicate/defective/ photocopies of these shall be entertained. If any such instance comes to the notice, the same shall be returned on risk and cost of the firm. The successful bidder shall supply (i) Original Electronic CDs as received by them from Publishers free of cost; (ii) User ID and password to access free online services.
- c. The Bidders shall deliver the stores in the space defined to the consignee and in good order (of which the Dean, ESIC Medical College & Hospital, Pune or his representative shall be the sole judge) within the limits of the time as deemed reasonable and specified in such quantities and/or qualities as may be ordered by him from time to time.
- d. All expenses incidental to the delivery of items shall be borne by the successful bidder at his own cost and own risk.

8. INSPECTION OF STORES: Supplies shall be accepted subject to the complete satisfaction of Dean or his nominated representative. Any defect found in the materials / stores supplied, will render the supplies open to rejection and decision of the Dean/ competent authority shall be final and legally binding. The rejected store shall have to be taken back at their own cost and risk, and shall replace such rejections with the items of standard specifications / quality as acceptable to the Hospital Authority. Alternatively, the stores may be purchased from others, at the risks and cost of the Bidders, at the discretion of the competent authority.

9. **PENALTY CLAUSE:**

A. For delays: - If the supplier fails to supply the books as per purchase order within the time period specified in the contract, the purchaser shall deduct from contract price/EMD/Bank guarantee a sum equivalent to 0.5% of the price of delayed items for each week of delay or part thereof until actual delivery up to a maximum of 10% (ten percent). Once the maximum is reached, the purchaser may consider termination of the contract.

B. Termination on default: The purchaser may, without prejudice to any other remedy on breach of contract, by written notice of default sent to the supplier, terminate the contract in whole or part if the supplier fails to deliver any or all publications ordered to him within the time period specified in the contract, or if the supplier fails to perform other obligation(s) under the contract. In the event of the termination of the contract in whole or in part, the ESIC Medical College & Hospital, Bibvewadi, Pune may procure, upon such terms and in such manner as it deems appropriate the undelivered Medical Books and the supplier shall be liable to pay for any excess cost for such purchases. However, the supplier shall continue performance of the contract to the extent not terminated.

10. Payments Terms: The payment to the supplier will be made after receipt of complete stores as mentioned in the purchase order and due inspection by the nominated official of the ESIC MCH, PUNE. No advance payment shall be made. The payment will be made by electronic transfer such as RTGS/NEFT etc. The supplier is instructed to supply the following information along with the Bill/invoice for payment: -

- i. Name of the beneficiary
- ii. Name of the Bank
- iii. Name of the Branch
- iv. Account Number
- v. IFSC Code

11. **OTHER TERMS:**

a. The Supplier is to be entirely responsible for the execution of the contract in all respects in accordance with the terms and conditions as specified in the acceptance of tender.

b. The Supplier shall not sublet/ transfer or assign the contract to any part thereof without the written permission of the Dean. In the event of the Supplier contravening this condition, Dean shall be entitled to place the contract elsewhere on the Suppliers account at his risk and the Supplier shall be liable for any loss or damage, which the Dean, may sustain in consequence or arising out of such replacing of the contract.

c. If the Supplier fails in fulfilling afore-mentioned terms and conditions, such failure will constitute a breach of the contract, and the Dean/ competent authority shall be entitled to make other arrangements at the risk and expense of the Supplier.

d. Recovery of sums due: Whenever any claim for the payment of a sum of money arises out of or under this contract against the Supplier, the purchaser shall be entitled to recover such sum by appropriating, in part or whole, from the security/earnest money deposited by the Supplier, when the balance or the total sum to be recoverable, as the case may be, shall

all be deducted from any sum then due or which at any time thereafter may become due to recoverable under this or any other contract with the purchaser. Should this sum not be sufficient to cover the full amount recoverable, the Supplier shall pay to the purchaser on demand the remaining balance due.

e. Insolvency and breach of contract: The Dean may at any time, by notice in writing, summarily terminate the contract without compensation to the Supplier in any of the following events, that is to say: -

- i. If the Supplier being an individual or if firm, any partner in the Supplier's firm, shall at any time be adjudged insolvent or shall have a receiving order or orders for administration of his estate made against him or shall take any proceedings for liquidation or composition under any insolvency for the time being in force or shall make any assignment or assignment of his efforts or enter into any arrangements or composition with his creditors or suspend payment of if the firm be dissolved under partnership act, or
- ii. If the supplier being a company shall pass a resolution or the court shall make an order for the liquidation of the affairs or a receiver or Manager on behalf of the debenture holder shall be appointed or circumstances shall have arisen which entitled the court or debenture holders to appoint a receiver or Manager
- iii. If the supplier commits any breach of this contract not herein specifically provided for: Provided always that such determination shall not prejudice any right of action or remedy which shall have accrued or shall accrue thereafter to the purchaser and provided also that the suppliers shall be liable to pay the purchaser for any extra expenditure, he is thereby put to but shall not be entitled to any gain on repurchased.

f. The successful bidder shall not in any case sublet the contract in full or any part of it to third party.

g. All materials should be delivered at the premises of ESIC Medical College & Hospital, Pune at the places earmarked for delivery of such goods, at the own expenses of the supplier.

h. Tender form incomplete in any respect and not supported with Earnest Money and the requisite documents, will be summarily rejected by the hospital.

i. The Competent Authority reserves the right to reject any or all tenders without assigning any reason whatsoever.

j. The bidders might be asked to furnish original documents for verification at the time of Award of the contract. In case of any discrepancy in the documents submitted, the award shall instantly be rejected.

k. Conditional bids shall be summarily rejected.

l. The Dean ESIC Medical college & Hospital Pune, does not pledge himself to accept the lowest Or any bid and reserves to himself the right of accepting the whole or any part of the bid or portion the quantity offered and you shall supply the books/medical books at the rate quoted by you.

12. ARBITRATION: In the event of any dispute or difference arising out of the terms and conditions laid down in this tender, the same shall be referred to the

e Arbitrator appointed by the Dean. The procedure of the Arbitration will be governed by the provision of Arbitration Act 1996 as amended and rules framed thereunder.

13. Declaration: It has been observed that in certain cases, family members of officers/officials (regular as well as contractual) of Employees' State Insurance Corporation (ESIC) were found engaged in trade or business activities, resulting in potential conflict of interest and/or undue advantage in the procurement process. The bidder must submit a declaration of the following effect.

If the bidder/contractor/supplier/seller or any employee of the bidder/contractor/supplier/seller or any person acting on behalf of the bidder/contractor/supplier/seller, either directly or indirectly, is a relative of any of the officers/officials (regular/contractual) of Employees' State Insurance Corporation (ESIC), or alternatively, if any relative of an officer/official of ESIC has financial interest/stake in the bidder's/contractor's/supplier's/seller's firm, the same shall be disclosed by the bidder/contractor/supplier/seller at the time of filing of the tender/participation in the procurement process. Failure to disclose this information shall result in cancellation of the bidder's participation.

14. Integrity and Ethical Conduct: The bidder shall maintain the highest standards of integrity, honesty, and ethical conduct during the tender process and execution of the contract. Any act of bribery, corruption, collusion, coercion, fraud, misrepresentation or undue influence shall be viewed seriously and may result in rejection of the bid, termination of the contract, forfeiture of Security Deposit and initiation of appropriate administrative or legal action by ESIC. Bidder must submit declarations in this regard as per Annexure-G.

Annexure - III

Application Form For Supply of Medical Books

1. Name and address of Firm/Agency_____

Firm/Company Telephone Numbers_____

2. Name, Designation, Address of Authorized Signatory_____

3. Please specify as to whether tenderer is sole proprietor / Partnership firm / Private or Limited Company_____

4. Name, Address & Telephone No of Director/ Partners/ Proprietor**

(i) _____

(ii) _____

5. Name & Address of your Bankers stating the name in which the Account stands

a) Name of Bank _____

b) Name of the Bank Branch _____

c) Account No & Type of Account _____

d) IFSC Code _____

e) MICR Code _____

6. Details of Bid Security / EMD:

(a) Amount with Details _____

(b) Demand Draft No & date of Issue _____

(c) Name of Issuing bank details _____

7. Are you in the list of approved Suppliers of any other organizations/Institution, if any give detail
s. Separate paper may be attached if required. _____

8. Details of Appropriate license for sale of book specified in bid documents _____

9. Declaration by the bidder:

This is to certify that I/we before signing this tender have read and fully understood all the terms

and condition contained herein and undertake myself/ourselves to abide by them.

We are aware that our EMD will be forfeited if we do not furnish performance security within the prescribed time-limit in case of selection of our bids.

(Signature of bidder)

Name & full Address

(with seal & sign)

Annexure - IV

UNDERTAKING

(To be submitted on ₹500/- Non-Judicial Stamp Paper)

I/We, M/s _____, hereby solemnly affirm and undertake that:

1. I/We have carefully read, understood and accepted all the terms and conditions of GeM Bid No. _____ for Supply of Medical Books and agree to abide by the same in letter and spirit.
2. I/We have quoted for all the books/items specified in the bid and undertake to supply at least 90% of the quoted books within the stipulated delivery period.
3. I/We confirm that only the latest available editions of the books shall be supplied. In case a newer edition becomes available prior to supply, the same shall be supplied without any additional financial implication to the Purchaser.
4. I/We undertake to offer a minimum discount of 10% on the publisher's printed price/MRP, wherever applicable.
5. I/We declare that neither the firm/company nor its proprietor/partners/directors has been blacklisted, debarred, banned or suspended from business dealings by any Publisher, Library, Educational Institution, Government Department, PSU, Autonomous Body or any other Organization.
6. I/We further declare that no Vigilance, CBI, Criminal, Fraud or similar investigation/proceeding, nor any order of any Court, Tribunal or Competent Authority restraining participation in Government procurement, is pending against the firm/company or its proprietor/partners/directors as on the date of submission of this bid.
7. I/We undertake that the rates/discount quoted in the bid are fair, reasonable and competitive and shall not be higher than those offered by us to any similarly placed Government Institution for identical items during the currency of the contract.
8. If the bidder/contractor/supplier/seller or any employee of the bidder/contractor/supplier/seller or any person acting on behalf of the bidder/contractor/supplier/seller, either directly or indirectly, is a relative of any of the officers/officials (regular/contractual) of Employees' State Insurance Corporation (ESIC), or alternatively, if any relative of an officer/official of ESIC has financial interest/stake in the bidder's/contractor's/supplier's/seller's firm, the s

ame shall be disclosed by the bidder/contractor/supplier/seller at the time of filing of the tender/participation in the procurement process. Failure to disclose this information shall result in cancellation of the bidder's participation.

9. I/We understand and agree that in the event any declaration made herein is found to be false, incorrect or misleading, or in case of breach of any undertaking, the Purchaser shall be entitled to reject/cancel the bid or contract and forfeit the EMD/Performance Security, without prejudice to any other action available under law or the bid conditions.
10. I/we understand that Dean, ESIC Medical College & Hospital, Pune the right to accept or reject any or all the tenders without assigning any reasons (s) thereof.

Place: _____

Signature of the Bidders & Full Name

Date: _____

Official seal of the Bidders

3. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

4. Generic

Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid. [Click here to view the file](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector

Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.

8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने

व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---